Opening Statement: The Tacloban Warning

Motion: *The minimum age of criminal responsibility in the Philippines should remain unchanged*
Side: Affirmative | Speaker: 1st Main Presenter | Stand: Change it — lower the MACR from 15 to 12, with a discernment test
Version 2 (school-shooting case) | Target length: about 5 minutes (approx. 880 words spoken)

THE SCRIPT

[THE BANG] — open cold. Say "Thirty-three" slowly. Hold a two-second pause after "thirty-three shots."

June 22, 2026. San Jose National High School, Tacloban City. Two Grade 9 students walk into their classrooms with guns. When it is over, three students are dead and several more are wounded.

According to the Philippine National Police, the fourteen-year-old gunman fired at least thirty-three shots.

Investigators say the attack was planned weeks in advance — and, according to reports of messages police later confirmed, the suspects had researched the Juvenile Justice and Welfare Act and believed it would spare them from criminal liability. For the fourteen-year-old, they were right. Under Section 6 of RA 9344, he is exempt.

Honorable adjudicators: when a child can study the law, plan a massacre around it, and be proven correct — the law is no longer protecting children. Children are being harmed under its protection.

[GREETING AND STAND]

A pleasant [morning / afternoon] to the honorable adjudicators, to our worthy opponents, and to everyone present. I am _____, first main speaker of the Affirmative side. Out of respect for the law and for the families, we will not name any child involved in these cases. And we stand firmly: the minimum age of criminal responsibility in the Philippines **should be changed.**

[WHAT FOLLOWED] — steady, factual tone. Let the dates do the work.

Tacloban was the first. It was not the last.

- **August 18, 2026 — Zamboanga City.** A Grade 9 student at Ateneo de Zamboanga livestreamed himself shooting and killing a schoolmate, then took his own life. International media called it the country's second school attack in under two months.
- **September 18, 2026 — Banga, South Cotabato.** A 16-year-old student killed two schoolmates, wounded several others, and then took his own life. Investigators found he had joined an online community where school shooters were idolized. This happened just two weeks after DepEd began its nationwide active-shooter drills.

Three deadly school shootings in under three months — in a country where school shootings were once rare. Today the Department of Justice is investigating possible links between these attacks

through online grooming and communities that glorify school violence.

Let me be careful and fair. We do **not** claim that the Tacloban exemption, by itself, caused the shootings that followed. That is for investigators to prove. But we ask a question every lawmaker must answer: **what message did the first case send** to the children watching in those online spaces? It said: a fourteen-year-old can plan for weeks, fire thirty-three shots, kill three classmates — and the law will call his response an "intervention." When the first case sets the example, **the law becomes part of the lesson.**

[OUR MODEL] — slow down; this blocks straw-man attacks.

- Lower the minimum age from **15 to 12**.
- A child from 12 to below 15 is liable **only if the prosecution proves discernment** — the same test our law already uses for ages 15 to below 18. In Tacloban, authorities applied that very test to the older suspect. Our model simply lets the same question be asked of the younger one.
- **No adult jails.** Bahay Pag-asa and youth facilities, diversion, automatic suspension of sentence, and confidential records (RA 9344, Sections 23, 38, 43).
- Adults stay accountable: Section 20-C for those who use children in crime, and full prosecution of anyone who lets a child get a gun — as authorities are now doing with the father of the South Cotabato shooter.

[PILLAR 1: THE LAW]

The 1987 Constitution, Article II, Section 5, declares that peace and order and the protection of life are essential to democracy. Article II, Section 11 guarantees respect for the dignity of every human person — including the three students who died in Tacloban. Article XV, Section 3(2) protects children from violence and conditions prejudicial to their development — and no condition is more prejudicial than a classroom where a classmate has a gun. The UN Convention on the Rights of the Child, Article 40(3)(a), requires a minimum age but **does not fix a number.** A discernment test from twelve, with child-sensitive safeguards, is fully consistent with it.

[PILLAR 2: THE MORAL GROUND]

Moral responsibility rests on knowledge and freedom. A child who researches the law, plans for weeks, and chooses his targets is showing knowledge and choice — the very elements of responsibility. We are not saying every fourteen-year-old understands like an adult. We are saying that when the evidence proves *this* child understood, the law must be allowed to say so. The victims were children too. Their right to life, and their families' right to justice, deserve the same moral weight we give to the offender.

[PRE-EMPTIVE FAIRNESS] — calm and respectful.

Our worthy opponents will say: bullying, online radicalization, and access to guns are the real causes. We agree — they are causes, and they must be fought. But they are **not alternatives** to accountability. We can regulate guns, stop online grooming, end bullying, **and** close the gap that let a planned attack be built around the law itself.

[THE GRAVE IMPACT] — build volume, then drop to a firm, quiet finish.

So here is what is at stake. Keep fifteen unchanged, and the next child who plans an attack can read the same law the Tacloban suspects read — and reach the same conclusion. Keep fifteen unchanged, and we tell the families of three dead students that the law asked every question except one: *did he know what he was doing?*

Tacloban was a warning. Zamboanga and Banga showed us the warning was real. A law that a child can plan a shooting around is a law that must change.

Change the age. Keep the care. Protect every child — including the ones in the classroom. Thank you.

FALLACY CHECK: WHAT THIS SCRIPT AVOIDS

Using real tragedies carries special fallacy risks. Each one is handled below — keep the wording as written.

Fallacy	Risk in this script	How the script avoids it
Post hoc / false cause	"Tacloban happened first, so it caused Zamboanga and Banga."	States outright: "We do not claim the exemption, by itself, caused the shootings that followed." Argues the **message** the first case sent, and cites the DOJ probe rather than inventing a link.
Appeal to emotion (alone)	Using deaths for shock value.	Each incident is tied to a legal point (Sec. 6 exemption, discernment test, Art. II Sec. 11).
Hasty generalization	"All teenagers are potential shooters."	Says plainly: "We are not saying every fourteen-year-old understands like an adult." The discernment test is case by case.
Appeal to fear	Predicting a wave of shootings.	Gives only three dated, reported incidents; no predictions or invented numbers.
False dilemma	"Either lower the age or nothing stops shootings."	Accepts guns, bullying, and online grooming as real causes; argues reform is **in addition** to those fixes.
Straw man	"The Negative wants shooters to go free."	Never says this; acknowledges their likely argument fairly and answers it.
Cherry-picking	Hiding that the 15-year-old was charged.	Uses that fact openly: the law already applies discernment to the older suspect; our model extends the same question.
Ad hominem	Attacking the law's authors or child-rights groups.	No personal references; only arguments.

EXPECT THESE COUNTERS FROM THE NEGATIVE

If they say...	Your answer
"The Zamboanga and Banga shooters took their own lives. A lower age would not have deterred them."	"Deterrence is only part of our case. Tacloban's suspects survived and, by reports police confirmed, planned around the law. Our point is the message the law sends to children planning an attack, and justice for victims."
"The Banga shooter was 16 — already covered by current law."	"Correct, and we said so. Our argument is about the gap the Tacloban case exposed: the 14-year-old who, per the PNP, fired at least 33 shots."
"The 15-year-old was charged, so the law works."	"It worked for him only because of his age. The same act by a classmate one year younger is legally exempt. That is the gap."
"The real causes are guns, bullying, and online radicalization."	"Agreed. Fix them all. None of those fixes answers the victims' families' question: did he know what he did?"
"You're exploiting a tragedy."	"We name no child, we invent no facts, and we claim no cause the evidence does not show. Ignoring the tragedy would be the disrespect."
"Bahay Pag-asa intervention is accountability."	"Intervention is not a finding that the child did wrong. Under Section 20-A, he is legally 'deemed a neglected child.'"

FACT SHEET: THE INCIDENTS (verify before the debate)

Date / Place	What was reported	Use in script
June 22, 2026 — San Jose National High School, Tacloban City	Two Grade 9 students (14 and 15) opened fire; 3 students killed; injuries reported from 5 to 20 depending on outlet. Police: planned weeks before; guns from family members. PNP: the 14-year-old fired at least 33 shots. Reports (leaked messages police later confirmed) say the suspects researched RA 9344 and believed they would be spared. Outcome: charges vs the 15-year-old after a discernment finding; the 14-year-old exempt, under DSWD intervention.	The Bang; the "gap" argument.
Aug. 18, 2026 — Ateneo de Zamboanga (junior high), Zamboanga City	A Grade 9 student livestreamed shooting and killing a schoolmate, then took his own life. Guns belonged to his father, a customs official. Media called it the second school attack in under two months.	Timeline: "Tacloban was not the last."
Sept. 18, 2026 — Banga, South Cotabato	A 16-year-old student killed two schoolmates, injured several (6 to 8 reported), then took his own life. Took part in an online community idolizing school shooters; occurred two weeks after DepEd's active-shooter drills. Five criminal complaints filed against his father; an alleged online "groomer" identified.	Timeline; adult accountability.
Oct. 2026 — DOJ	Investigating possible online-grooming links among the school shootings.	"Investigators are looking at links" (not "proven cause").
Senate response (June 2026)	Sen. Padilla sought to lower the MACR (SB 372); Sens. Lacson and Go called for review of RA 9344; Sen. Pangilinan said the problem is implementation.	Shows the debate is live in Congress.

ACCURACY RULES WHEN SPEAKING

• Say "three students were killed" and "several wounded" for Tacloban — injury counts differ between outlets. • Say "according to reports of messages police later confirmed" for the RA 9344 research claim; do not state it as a court finding. • Say "investigators are looking into links"; never say "Tacloban caused the other shootings." • Do not name any child (RA 9344, Sec. 43 confidentiality). • Re-check the latest news the day before the debate; these cases are still under investigation.

SOURCES

• Inquirer: "14-year-old gunman in Tacloban shooting fired at least 33 shots - PNP"; "Criminal raps vs 15-year-old; rehab for younger suspect"; "Tacloban City school shooting planned weeks before, says police"
• Philstar / Manila Bulletin / NPR (June 22, 2026): 3 students killed in Tacloban City school shooting
• Wikipedia: "2026 Tacloban school shooting" (RA 9344 research claim, leaked messages confirmed by police)
• Al Jazeera, CNN, AP (Aug. 18, 2026): Zamboanga livestreamed school shooting
• CNN, Reuters, CBC (Sept. 18, 2026): Banga, South Cotabato school shooting; Inquirer: "5 criminal raps lodged vs father of South Cotabato school shooter"
• Daily Tribune (Oct. 10, 2026): "DOJ probes online grooming links to school shootings"
• Cebu Daily News: "Tacloban shooting: Padilla seeks amendment of Juvenile Justice Act"; GMA: Lacson urges review of Juvenile Justice Law